

IN THE HIGH COURT OF JHARKHAND AT RANCHI

A.B.A. No. 1129 of 2020

Jagmohan Yadav	...	...	Petitioner
	Versus		
The State of Jharkhand	...	...	Opp. Party

CORAM: THE HON'BLE MR. ANIL KUMAR CHOUDHARY

For the Petitioner : Mr. J.S. Singh, Advocate
For the State : Addl. P.P.

Order No.04: Dated: 2nd March, 2020

Per Anil Kumar Choudhary, J.:

Apprehending his arrest, the petitioner has moved this Court for grant of privilege of anticipatory bail in connection with Balumath P.S. Case No. 254 of 2019 registered under Sections 414, 120B of the Indian Penal Code and section 30 of the Coal Mines (Nationalization) Act.

Heard learned counsel for the parties.

Learned counsel appearing for the petitioner submits that the allegations against the petitioner are that the petitioner is the owner of the truck which was involved in illegal transportation of coal. Learned counsel for the petitioner submits that the allegations against the petitioner are all false. It is next submitted that the petitioner is ready and willing to cooperate with the investigation and also ready and willing to furnish sufficient cash security. It is further submitted that the petitioner has no criminal antecedent as evident from para 9 of the anticipatory bail application. Hence, it is submitted that the petitioner be given the privilege of anticipatory bail.

Learned Addl. P.P. opposes the prayer for grant of anticipatory bail.

Considering the submissions of the counsels and the fact as discussed above, I am of the opinion that it is a fit case where the above named petitioner be given the privilege of anticipatory bail. Hence, in the event of his arrest or surrender within a period of two months from the date of this order, he shall be released on depositing of Rs. 25,000/- as

cash security and furnishing bail bond of Rs. 25,000/- (Rupees Twenty Five Thousand) with two sureties of the like amount each to the satisfaction of learned Chief Judicial Magistrate, Latehar in connection with Balumath P.S. Case No. 254 of 2019 with the condition that the petitioner will furnish his mobile number and a copy of his Aadhar Card in the court below with the undertaking that he will not change his mobile number during the pendency of the case subject to the conditions laid down under section 438 (2) Cr. P.C.

(Anil Kumar Choudhary, J.)

MM